

ARTICLES

Moral Responsibility and Ignorance*

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I

Doris has just driven her car into a tree. She's unconscious, slumped over the steering wheel. Perry comes upon the scene. He's shocked at what he finds. He looks around to see if anyone can help, but there's no one else there. He's wondering whether he should try to find a phone to call for aid, but visions of wrecked cars catching fire and exploding into roiling balls of flame fill his mind, and he feels that he must rescue the driver now or else she'll surely die. So, with considerable trepidation, Perry rushes in and quickly drags Doris free from the wreck, thinking that at any moment both he and she might get caught in the explosion. At last, when he judges that they are far enough away from the car, he collapses, exhausted, onto the ground, with Doris lying in his arms. As it happens, the car does not explode. Within a couple of minutes, Perry hears sirens wailing. Soon after, some emergency vehicles screech to a halt. Paramedics jump out. They run over to Perry and Doris. Perry tells them what happened. The paramedics take a look at Doris, and they arrive at a chilling conclusion: Perry has paralyzed Doris.

Is Perry morally responsible for what he has done? (Here, and henceforth, by "morally responsible" I shall mean "morally culpable," for other types of moral responsibility will not be at issue. Also, I shall omit the qualifier "moral(ly)," although it will always be implicit.) That depends. One thing it depends on is whether Perry acted freely in paralyzing Doris. There are some who deny that freedom is a prerequisite of responsibility but, while this view deserves attention, I shall not attend to it here.¹ It is surely very plausible to assume, as indeed the vast

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1. → Robert M. Adams, "Involuntary Sins," *Philosophical Review* 94 (1985): 3–31; and Eugene Schlossberger, *Moral Responsibility and Persons* (Philadelphia: Temple Uni-

majority of people do appear to assume, that responsibility requires a sort of freedom (voluntariness, control), a sort that people are naturally understood to manifest in their everyday actions but which automata, for instance, do not. (I hope I may be forgiven if I do not try to render this extremely familiar but also extremely complex notion more precisely here.) Moreover, it would be pretty surprising if Perry lacked such freedom when attempting to rescue Doris.

(In saying that responsibility requires freedom, I do not mean that to be responsible for doing some act one must have acted freely at the time of doing it. While this may be true of Perry, it is not true of all responsible agents. After all—this is the stock example—a drunk driver may be responsible for the accident that he [or she] has caused, even though he was completely out of control at the time. But if he is, this is because he is responsible for being out of control, and this requires that, somewhere back down the line, he had been free to do other than he did. Freedom is thus what may be called a root requirement of responsibility; if not directly free with respect to his having an accident, the drunk driver was at least indirectly free with respect to this.)

But, while freedom is necessary for responsibility, it alone does not suffice for responsibility. Some other condition, presumably mental, must also be satisfied. (Little children, we may assume, typically act freely when they do what they do, but they lack the mental capacity to be responsible for what they do.) If Perry had intended to paralyze Doris, then, most would say (and I would be inclined to agree), he is to blame—that is, he is culpable—for doing so. But, of course, this was not his intention; on the contrary, his intention was to save Doris. In fact, he was quite ignorant of the risk of paralysis, and he's devastated by the outcome. Under these conditions, most would say (and I would again be inclined to agree) that Perry is not to blame for paralyzing Doris, unless he is to blame for his ignorance.

Where I would differ with most people, however, is in the assessment of what it takes for agents such as Perry to be culpable for their ignorance and, hence, for acting in ignorance. Most people would say, I believe, that the conditions for culpable ignorance are fairly easily and frequently satisfied, whereas I would say that the conditions are pretty restrictive and that therefore culpable ignorance occurs less frequently, perhaps far less frequently, than is commonly supposed. In this article I shall attempt to defend this view.²

versity Press, 1992). Their views are discussed in my "Responsibility regarding the Unthinkable," *Midwest Studies in Philosophy* 20 (1995): 204–23, sec. 2.4.

2. What follows builds on remarks given in → "Negligence and Moral Responsibility," *Noûs* 20 (1986): 199–218, and *An Essay on Moral Responsibility* (Totowa, N.J.: Rowman & Littlefield, 1988), secs. 4.1 and 4.2. It also constitutes a reply to criticisms

II

Ignorance is ignorance of facts. It is the failure to know the truth. This can come about only by way of a failure justifiably to believe the truth. Such failure can itself come about in one of two ways: either by way of a failure to believe the truth or by way of believing the truth but without justification. It is not clear to me that the second of these can be properly said to constitute ignorance. Had Perry believed, truly but without justification, that he ran the risk of paralyzing Doris, would it be correct to say that he was ignorant of this risk? Whether or not it would be correct to say this, the issue can be side-stepped here. For if Perry did have this belief but paid no heed to it and proceeded to pull Doris free from the wreck anyway, we would be disinclined to excuse him. It is only when ignorance of P is due to the failure to believe P that we excuse a person's acting in ignorance of P. Henceforth, when I speak of ignorance, I shall mean ignorance that is constituted by failure of belief.

But ignorance of what, precisely? I have mentioned Perry's ignorance of the risk of paralyzing Doris, but this is in fact only an indication of the ignorance that is directly relevant to his having an excuse. The ignorance that is directly relevant is his ignorance of his doing something morally wrong (or, at least, of his running an undue risk of doing something morally wrong—and running such a risk is itself a form of wrongdoing). For suppose that he had been unaware of the risk of paralysis but nonetheless believed he was acting wrongly; then he would not have an excuse for his action after all. (I am talking of wrongdoing all things considered, and not merely *prima facie*.) Or suppose that he had been aware of the risk of paralysis but nonetheless did not believe that he was acting wrongly (he thought the risk was worth taking); then he would have an excuse for his action (as long as his ignorance concerning wrongdoing was not itself culpable). It is because it is likely (but not certain) that Perry's ignorance of the risk of paralysis brought with it an ignorance concerning wrongdoing that I said in the last section that I was inclined (but did not say that I was committed) to the view that he is not to blame for paralyzing Doris, unless he is to blame for his ignorance of the risk of paralysis.

III

The claim that Perry is to blame for paralyzing Doris only if he is to blame for his ignorance may appear to be plausibly supplemented with the claim that, under the circumstances, he is to blame for paralyzing her if he is to blame for his ignorance. This latter claim is

important, and I shall discuss it in Section IV. But at the moment it is only the former claim that is at issue. For, once it is granted, we are forced to ask: How could it be that Perry is to blame for his ignorance?

There is what may seem to be an easy answer to this question. (It is certainly a very common answer.) Perry didn't "know better" than to drag Doris free from the wreck; that's what his ignorance consisted in. But if he ought to have "known better"—if he ought to have known that he was thereby doing wrong—then he is to blame for not knowing better and, hence, to blame for the action (and its consequences) that he performed in this state of ignorance.

I think this easy answer is mistaken. We must ask what is meant by saying that Perry ought to have known better. What type of "ought" is this? There are two main possibilities.

The first possibility is that "ought" is here intended to express an ideal. (This is sometimes called the "ought-to-be.") But if this is what is meant, then the claim that in general one is responsible for not knowing what one ought to have known is surely to be rejected. Most, if not all, ignorance ought not to be, in the present sense. But much ignorance is such that no one is responsible for it; for much ignorance is unavoidable, and one cannot be to blame for what is unavoidable. Again, responsibility requires freedom.³

The second possibility is that "ought" is intended to express an obligation. (This is sometimes called the "ought-to-do.")⁴ In this sense, to say that Perry ought to have known better is to say that he did wrong, all things considered, in not knowing better.⁵ I shall take it that this sense of "ought" does indeed imply "can"—that is, that that which one ought, in this sense, to do is something that one is free to do.⁶ In particular, then, to say that Perry ought to have known better is to imply that he could have known better—he was free to know better. Thus it would seem that our concern with freedom cannot

3. In saying that one cannot be to blame for what is unavoidable, I mean, more precisely, that this is so except in Frankfurt-type situations; and such situations are not at issue here. (→ Harry G. Frankfurt, "Alternate Possibilities and Moral Responsibility," *Journal of Philosophy* 66 [1969]: 829–39). Moreover, the claim that responsibility requires freedom applies even to such situations. (It is the claim that freedom requires avoidability that is to be rejected.) See my *An Essay on Moral Responsibility*, sec. 4.10.

4. 'Ought-to-be' and 'ought-to-do' are terms used by, among others, C. D. Broad, *Ethics* (Dordrecht: Nijhoff, 1985), pp. 225 ff.; Hector-Neri Castañeda, *Thinking and Doing* (Dordrecht: Reidel, 1975), chap. 7; Roderick M. Chisholm, "Practical Reason and the Logic of Requirement," in *Practical Reason*, ed. Stephan Körner (New Haven, Conn.: Yale University Press, 1974), pp. 11 ff.; and Fred Feldman, *Doing the Best We Can* (Dordrecht: Reidel, 1986), chap. 8.

5. "Did" is to be construed broadly. Perhaps all that Perry "did" was an omission: he omitted to act as he ought to have acted, and his ignorance is attributable to this omission.

6. This is controversial, of course. It is defended in my *The Concept of Moral Obligation* (Cambridge: Cambridge University Press, 1996), sec. 3.1.

here be invoked to block ascriptions of responsibility, and so the way may seem clear to blaming Perry for his ignorance and, hence, for his ignorant behavior.

It has already been noted, however, that freedom does not itself suffice for culpability, and now we should note that the same is true even if one's free action takes the particular form of wrongdoing. Excuses for wrongdoing are, after all, a conceptual possibility. Even if we grant, then, that Perry's ignorance is attributable to wrongdoing on his part, and hence that he was in control of it, how is it that we are supposed to be able to infer from this that he is culpable for it? As noted in the first section, in addition to freedom, some other condition, presumably mental, must be satisfied if one is to be responsible for something. Thus Perry must satisfy some such condition if he is to be responsible for his ignorance. What might this condition be?

The argument at issue here can be put more fully and more formally as follows. Let us suppose that

1. Perry is culpable for his ignorant behavior (i.e., for behaving as he did, even though he was ignorant of the fact that his behavior was morally wrong, all things considered).

Given that

2. one is culpable for behaving ignorantly only if one is culpable for being ignorant,

we may infer that

3. Perry is culpable for being ignorant.

Further, given that

4. one is culpable for something only if one was in control of that thing,

we may infer that

5. Perry was in control of being ignorant.

At this point it should be recognized that

6. no one can be in direct control of being ignorant.

Moreover,

7. if one is in control of something but not directly so, then one is in indirect, and only in indirect, control of it.

It follows that

8. Perry was in indirect, and only in indirect, control of being ignorant.

Furthermore, with respect to the direct-indirect distinction, responsibility tracks freedom. More precisely,

9. if one is culpable for something but was only in indirect control of it, then one is indirectly, and only indirectly, culpable for it.

Thus

10. Perry is indirectly, and only indirectly, culpable for being ignorant.

However, just as indirect freedom presupposes direct freedom, so indirect responsibility presupposes direct responsibility. More precisely,

11. if one is indirectly, and only indirectly, culpable for something, X, then one is directly culpable for something else, Y, of which X was a consequence.

Thus

12. Perry is directly culpable for something of which his ignorance was a consequence.

So the hunt is on for this something for which Perry is directly culpable and of which his ignorance was a consequence. What could this something be?

Before I attend to this question, let me say something about the premises that give rise to it. I believe that each of these premises is very plausible, and so my remarks here will be brief. Premise (1) is assumed simply for the sake of argument. Premises (2) and (4) express two of the assumptions made in Section I when I was setting the scene for the present inquiry. I have already indicated that I shall not attempt to defend the latter;⁷ the former, however, is especially important—in some ways it is the key premise—and I shall have more to say about it in Section VII below. Premises (6) and (7) presuppose a general distinction between direct and indirect control. One is in indirect control of something, X, if and only if one is in control of it by way of being in control of something else, Y, of which X is a consequence. (Thus the drunk driver in the example given earlier was in indirect control of his driving by way of being in control of his drinking.) One is in direct control of something if and only if one is in control of it in some way that does not involve being in control of it by way of being in control of something else. Premise (6) is based on the observation that, if one can avoid ignorance, one can do so only by way of doing something else by means of which ignorance is avoided.⁸ Prem-

7. But see my "Responsibility regarding the Unthinkable," and *An Essay on Moral Responsibility*, where some defense is attempted.

8. This will, I think, be granted by all. Even James Montmarquet, who argues that we can sometimes bear direct responsibility for certain doxastic states (such as whether we exhibit care when forming and retaining beliefs) in part because (he claims) we can be directly free with respect to being in such states, acknowledges that we can only be

ise (7) rests squarely on the accounts—admittedly rather rough—just given of direct and indirect control. Premises (9) and (11) presuppose a corresponding distinction between direct and indirect culpability: one is indirectly culpable for something, X, if and only if one is culpable for it by way of being culpable for something else, Y, of which X is or was a consequence; one is directly culpable for something if and only if one is culpable for it in some way that does not involve one's being culpable for it by way of being culpable for something else. Premise (9) is based on the idea (which itself constitutes a refinement of premise [4]) that direct culpability requires direct control, whereas indirect culpability requires only indirect control. (This idea is a reflection of the purely parasitic nature of indirect control, which renders such control inadequate as a basis of what I call substantial culpability. I shall say more about this in the next section.) Finally, premise (11) rests squarely on the accounts just given of direct and indirect culpability.

Let me now return to the question: What is that thing for which Perry is directly culpable and of which his ignorance (concerning the wrongness of his behavior when he paralyzed Doris) was a consequence? An obvious answer is this: carelessness, or inconsiderateness, or something of the sort. Surely, we might say, any careful or considerate person would at least have entertained the possibility of doing more harm than good by means of a precipitate rescue, and if Perry did not entertain this possibility, well, then, that just shows that, despite his good intentions, he was careless or inconsiderate and is thus the fitting object of blame.

But this "obvious" answer is in fact inadequate. The question still remains: was Perry aware that his careless or inconsiderate behavior was itself morally wrong? The answer is no. Carelessness and inconsiderateness typically involve a failure to believe (at the time) that one is being careless or inconsiderate. Even if this is not necessarily the case, it was clearly true of Perry; and if Perry did not believe that he was being careless or inconsiderate, then a fortiori he did not believe that he was acting wrongly by way of being careless or inconsiderate. Thus the argument would apply all over again: just as Perry's culpability for paralyzing Doris is, because it was done in ignorance, to be traced to culpability for something else, namely, his acting in a careless or inconsiderate manner, so too his culpability for acting in this manner must itself, because it too was done in ignorance, be traced to yet something else. The hunt is still on.

indirectly free with respect to the presence or absence of particular beliefs. See James Montmarquet, *Epistemic Virtue and Doxastic Responsibility* (Lanham, Md.: Rowman & Littlefield, 1993), pp. 45–46, and "Culpable Ignorance and Excuses," *Philosophical Studies* 80 (1995): 41–49, esp. pp. 42–43.

But, it may be retorted, all that Perry had to do was pay attention to what he was doing, and this was something he could have done; indeed, it was something that he had direct control over. Thus his culpability may be traced to his inattentiveness, and, since his control over this was direct, we need hunt no further than that.

Again, this won't do. Let me grant (although in fact I have serious reservations about this) that attentiveness to what one is doing is typically in one's control and, indeed, directly so.⁹ The fact remains that such control does not itself suffice for culpability. Granted, Perry was inattentive to certain aspects of his rescue of Doris; and had he paid attention to these aspects—something which, I am conceding for the sake of argument, he could have done—he could and, we hope, would have gone about the rescue in a different way. But so what? He was ignorant of the need to pay such attention, that is, of the wrongness of his not paying such attention. And so the argument applies yet again: just as Perry's culpability for acting in a careless or inconsiderate manner is, because it was done in ignorance, to be traced to something else, namely, his failure to pay attention to what he was doing (if, indeed, this was something else),¹⁰ so too his culpability for failing to pay attention to what he was doing must, because it too was done in ignorance, be traced to yet something else. The fact (if it is a fact) that Perry was directly in control of his inattentiveness is of no moment. He must also have been in indirect control of it.¹¹ At least, this is so if he is to be culpable for it, since he was ignorant with respect to it.

By now the moral should be obvious. It is clearly futile to search for something for which Perry might be directly culpable but concerning whose wrongness he was ignorant. For, by the foregoing argument, he could be culpable for this thing only if he were culpable for the ignorance with which it was performed, and this ignorance would be something for which he is and could only be indirectly culpable. Hence culpability for ignorant behavior must be rooted in culpability that involves no ignorance.¹²

9. Regarding my reservations, see my "The Range of Options," *American Philosophical Quarterly* 27 (1990): 345–55, esp. sec. 5.

10. I shall leave open just what the relation is between Perry's being inattentive and his being careless or inconsiderate.

11. Compare: if I am now directly in control of, say, paying attention to what I am now writing, then yesterday I was indirectly in control of this; for my present attentiveness is itself a consequence of certain things I did yesterday. Had I gone on vacation yesterday, I would not be writing these words today.

12. This conclusion is missed even by Holly Smith, who is perhaps closer to accepting it than anyone other than myself who has written on the topic. While → "Culpable Ignorance," *Philosophical Review* 92 (1983): 543–71, she gives an account of culpable ignorance according to which all responsibility for such ignorance is rooted in something else (which she calls a "benighting act") for which one is culpable, she fails to acknowl-

In summary, then, my argument is simply this. If one is culpable for nonignorant behavior, then, of course, one's culpability involves a lack of ignorance. If, in contrast, one is culpable for ignorant behavior, then one is culpable for the ignorance to which this behavior may be traced. Hence one's culpability for one's ignorant behavior, at least, is merely indirect. But one is never in direct control of whether one is ignorant. Hence one's culpability for one's ignorance is also merely indirect. Indirect culpability for something presupposes direct culpability for something else. Whatever this something else is, it cannot be ignorant behavior, because then the argument would apply all over again to this behavior. Hence all culpability can be traced to culpability that involves lack of ignorance, that is, that involves a belief on the agent's part that he or she is doing something morally wrong.

IV

It might be thought that, even if the conclusion just reached is granted, it still does not warrant the claim that I made earlier, namely, that responsibility for ignorance, and for ignorant behavior, occurs less frequently, perhaps far less frequently, than is commonly supposed. After all, even if one cannot be directly culpable for something without having a belief about wrongdoing that concerns it, and even if this constitutes a restriction on culpability that is not commonly acknowledged, it doesn't follow that one cannot be indirectly culpable for something without having a belief about wrongdoing that concerns it. Thus the opportunities for culpability for ignorance, which is necessarily indirect, might well remain quite plentiful.

This conclusion is premature. As far as I can tell, tracing culpable ignorance to such nonignorant origins would indeed require us to cut back fairly drastically on the frequency with which we ascribe culpability for ignorance. But, aside from this, there is another point to be made, one that requires us to pay attention to the following question: For exactly which consequences, of those things for which we are directly culpable, are we indirectly culpable?

Surely no one wants to answer "all," nor even, "all those over which we have or had control." For this would be far too sweeping. Who would want to claim, for instance, that a liar is to blame for the disturbance of air molecules that occurs as a consequence of the utterance of a lie?

There are some who answer "none."¹³ There is a sense in which I think this answer must be right. That sense is the following: the

edge that culpability requires, at bottom, a belief concerning wrongdoing (pp. 547–48, 556). This failure is repeated → Smith's "Varieties of Moral Worth and Moral Credit," *Ethics* 101 (1991): 279–303, esp. pp. 279–80.

13. Compare Smith on what she calls the 'Liberal View' in "Culpable Ignorance."

extent or degree to which one is to blame when one is directly culpable for something cannot be increased by anything that occurs as a consequence of that thing (unless one is also directly culpable for this consequence). Suppose, for example, that Shirley shot Dan and that Dan consequently died. Dan's death added nothing to the extent to which Shirley is to blame. Although Dan's death may have added to the number of things for which Shirley is to blame, it did not increase the degree to which she is to blame. Given his death, she may be to blame for more, but she is no more to blame than she would be had his death not occurred. The reason for this is that Shirley was only indirectly in control of Dan's death. That is, she was in direct control of something of which Dan's death was a consequence, and only in this way did she have control over Dan's death. This means that Dan's death was not in Shirley's control except insofar as this something was in her control. In a sense, then, her control ended with this something; whether Dan's death occurred as a result was, beyond that point, not up to her but (as it is sometimes put) up to nature.¹⁴ Her control did not extend beyond this something with respect to which she was directly free; there was no fresh injection of freedom beyond that point. Given that responsibility tracks freedom, there was therefore no fresh injection of responsibility beyond that point; her responsibility was not extended, its degree was not increased, by Dan's death.

Let us say that one is substantially culpable for something if and only if one's being culpable for it contributes to the extent or degree to which one is to blame. According to the argument just given (which is admittedly pretty compact), one is not substantially culpable for something of which one was only indirectly in control and hence for which one is, at best, only indirectly culpable.¹⁵ If one is only indirectly culpable for something, then one is only indirectly in control of it; any such control is purely parasitic on one's direct control over something else, and any such culpability is likewise purely parasitic on one's direct culpability for something else. Even if Shirley is culpable for Dan's death, then, she is not substantially culpable for it.

If this is correct, then there is a sense in which no one is ever culpable for any ignorance concerning wrongdoing (since no one can be directly culpable for it), let alone for any behavior attributable to such ignorance. That sense is simply this: no one is ever substantially culpable for such ignorance or for behavior performed in such ignorance. In this sense, Perry is not responsible for paralyzing Doris. But this is not the only respectable sense at hand. As I have just

14. Donald Davidson uses the phrase "up to nature" in his *Essays on Actions and Events* (Oxford: Clarendon, 1980), p. 59.

15. For a less compact version of the argument, see my *An Essay on Moral Responsibility*, secs. 3.3 and 4.11.

acknowledged, we may indeed be tempted to say that Shirley is culpable for Dan's death, even if she is not substantially culpable for it. Why say this, if her culpability in this regard must be empty or insubstantial? How is this any more appropriate than blaming the liar for the disturbance of air molecules? The answer, surely, is that, even if the liar satisfies the freedom condition for culpability with respect to this disturbance, he (or she) presumably fails to satisfy the relevant mental condition. Even if there were somehow something morally wrong with his disturbance of air molecules, he was ignorant of this. But the same may well not be true of Shirley. In fact, let us now assume that Shirley freely and intentionally killed Dan, believing this to be wrong. This suffices, I believe, for her to incur culpability in this regard. Suppose that it is for her decision to shoot Dan that Shirley is directly culpable. Then, even though she is not substantially culpable for any consequence of this decision¹⁶ (including Dan's death), still it seems appropriate to say that she is culpable for his death. For her decision to shoot Dan was based on her belief that she would thereby bring about his death. In that sense, his death was "cognitively connected" to her decision, and thus to her too, and its occurrence thereby serves to indicate, even if only indirectly, what it is that Shirley is substantially culpable for. Although Dan's death does not add to the extent of Shirley's culpability, it is indicative of the extent to which she is culpable.

In the absence of any such cognitive connection between that for which an agent is directly culpable and its consequences, these consequences are not indicative of the extent to which the agent is culpable, and hence it seems quite inappropriate to say that the agent is culpable for them, even indirectly. The implication of this observation with respect to the case of Perry and Doris is of course that for Perry to be culpable for his ignorance, or for his attempt (made in ignorance) to rescue Doris, or for his paralyzing Doris (in ignorance), there must be some cognitive connection between these states or events and that state or event for which Perry is directly culpable and of which they are consequences. Now, this sort of thing can happen. Imagine, for example, that Perry had signed up for some training in first aid but had deliberately decided to skip the session having to do with the treatment of accident victims, despite believing that he ought not to skip it precisely because he would remain ignorant about how to treat such victims. In such a case, he may well be directly culpable for his decision to skip the session, and on this basis it may well be appropriate to hold him indirectly culpable for his ignorance concern-

16. Unless she happens also to be directly free with respect to such a consequence. Compare n. 11 above.

ing how to treat Doris and for his attempt to rescue her.¹⁷ (Whether it would be appropriate to hold him culpable for paralyzing her is another matter; this would depend on whether, at the time of his decision to skip the session, he contemplated some such consequence of his attempting to rescue someone while ignorant of how best to treat accident victims.) But it seems plain that, although this sort of thing can happen, it is far more often the case that when people engage in precipitate actions like Perry's there is no such cognitive connection between these precipitate actions and their consequences, on the one hand, and some prior event, on the other, for which these people are directly culpable. It is commonly supposed that such agents are nonetheless to blame for these actions and their consequences; but this is a mistake.

V

Indeed, there is yet a further restriction on responsibility for ignorance that I believe should be acknowledged. It is this: not only is one responsible only for those things to which one is cognitively connected, but this connection must involve one's adverting to those things as well.

I have argued that all culpability involves a belief on the agent's part that he or she is doing something morally wrong. However, beliefs can be merely dispositional, rather than occurrent. If one believes merely dispositionally that, in doing some act, one is doing wrong, then one need not advert to that act. For to advert to it is to contemplate it, to hold it consciously before one's mind.

But while beliefs presumably can be merely dispositional, it is, I believe, occurrent beliefs about wrongdoing that are, with one possible exception, required for culpability; and such beliefs involve advertence. The reason is this. With one possible exception, if a belief is not occurrent, then one cannot act either with the intention to heed the belief or with the intention not to heed it; if one has no such intention, then one cannot act either deliberately on or deliberately despite the belief; if this is so, then the belief plays no role in the reason for which one performs one's action; and one incurs culpability

17. Note that, while it cannot of course be that Perry both is to-blame and is not to-blame for his attempt to rescue Doris, it can be that he both is to-blame and is not-to-blame for this. Indeed, he might even be both culpable and laudable for it. This is because, while he may be culpable for it by virtue of being directly culpable for his decision to skip his first aid session, he may also be laudable for it by virtue of his being directly laudable for his decision to risk his life for the sake of another. Such "conflicting" multiple evaluations are perfectly consistent with one another. While we must not ignore the bad intentions involved in the earlier decision to skip class, we must likewise not ignore the good intentions involved in the later decision to rescue. See my *An Essay on Moral Responsibility*, pp. 59–60, and "A Plea for Ambivalence," *Metaphilosophy* 24 (1993): 382–89.

for one's action only if one's belief concerning wrongdoing plays a role in the reason for which one performs the action. Suppose, for example, that Perry did skip a first aid session and that he believed at the time that it was wrong for him to do this; but suppose that this belief was merely dispositional. Then it follows that, with one possible exception, this belief played no role in the reason for his skipping the session and, hence, that he is not culpable for his decision to do so,¹⁸ even though he believed it was wrong to do so.

The one possible exception is this: it may be that routine or habitual actions are performed for reasons to which one does not advert. It may also be that some people engage in deliberate wrongdoing in a routine or habitual, and hence inadvertent, manner. To the extent that this is so, the present considerations concerning advertence do not apply. But to the extent that this is not so, they do apply. So there is this further restriction on culpability: in cases other than those of routine or habitual actions, one incurs culpability for something only if one's cognitive connection to that thing involves one's advertent to it.

VI

Regardless of this question of advertence, all moral ignorance can be traced to one or the other of two sources: nonmoral error and moral error. Perry's ignorance concerning his doing wrong in dragging Doris free from the wreck is presumably to be traced to his ignorance concerning the risk of paralysis. This latter ignorance constitutes a nonmoral error (an error concerning a nonmoral fact). But Perry's ignorance concerning wrongdoing could conceivably have stemmed from a different source. For instance, he might have believed that if he was in a position to drag someone free from a wreck, he might do wrong in doing so, and also have believed that he was in such a position with respect to Doris, and yet have failed to make the simple inference that he might do wrong in dragging Doris free from the wreck. This is bizarre; if it had occurred, however, Perry's ignorance concerning his doing wrong in dragging Doris free from the wreck is to be traced to another type of nonmoral error (an error in reasoning). Or again, Perry's ignorance concerning wrongdoing might have stemmed from his being ignorant of there being anything morally questionable about harming people. This is grotesque; if it had occurred, however, his ignorance concerning wrongdoing is to be traced to a type of moral error (an error concerning a moral fact).

Now, there are some who claim that it is easier to excuse moral ignorance that is due to nonmoral error than moral ignorance that is

18. Unless, of course, he is indirectly culpable for this decision by way of being directly culpable for some yet earlier event.

due to moral error.¹⁹ I see no reason to think that this is so. The argument of Section III applies in both cases. Even if Perry's ignorance concerning wrongdoing were to be traced to his being ignorant of there being anything morally questionable about harming people, this latter ignorance would be culpable only if it in turn could be traced to some episode where Perry was not ignorant concerning wrongdoing.

VII

An argument is only as strong as its weakest premise. The central argument in this article is the one presented in Section III. I attempted in that section to say something briefly in defense of each of its premises, but it is worth inquiring further into the first general assumption, which is what gets the argument rolling.

I have said that most people would agree that Perry is not to blame for his ignorant behavior unless he is to blame for his ignorance. This is clearly an instance of the claim that constitutes the first general assumption:

2. one is culpable for behaving ignorantly only if one is culpable for being ignorant.

But, while most would agree with this, why should we agree with it? This is an important question, because it would clearly be a mistake to accept (2) on the basis of accepting the following yet more general statement:

- 2*. one is culpable for behaving X-ishly only if one is culpable for being X-ish.

There are many counterexamples to this more general claim. For example, one might be culpable for behaving angrily without being culpable for being angry; so too for behaving cruelly and being cruel; and so on. Why, then, should ignorance be an exception?

We should distinguish acting angrily—acting from anger—and acting while angry. (“Acting in anger” is ambiguous between the two, although it is typically used to mean the former.) If one acts from anger, one's action issues from one's anger; one's anger serves to explain one's action. If one acts while angry, one's action need not issue from one's anger. This seems important, for it helps explain how it can happen that one is culpable for acting angrily even though not culpable for being angry. On some occasions, one cannot help being angry and thus is not culpable for being angry. On such occasions, one cannot avoid its being the case that, if one acts, one acts while

19. The locus classicus: Aristotle *Nicomachean Ethics* bk. 3, chaps. 1 and 5. See → Lloyd Fields, “Moral Beliefs and Blameworthiness,” *Philosophy* 69 (1994): 397–415, for a recent defense of this claim. This issue is put to one side in Sverdlik, p. 139.

angry. Still one might be able to avoid acting angrily, and so one might be responsible for acting angrily.

It may initially seem that ignorance differs from anger in this regard. It may seem that there is no ambiguity to "acting in ignorance," in that there is no distinction to be drawn between acting ignorantly—acting from ignorance—and acting while ignorant. If this were so, then, if one's ignorance were unavoidable, one could also not avoid its being the case that, if one acted, one acted ignorantly. And this might seem to help explain why it is that (2) is true but (2*) is not.

But I think this would be a mistake. There is a distinction to be drawn between acting ignorantly—acting from ignorance—and acting while ignorant.²⁰ (Thus "acting in ignorance" is ambiguous after all, although, again, I think it is typically used to mean the former.) Perry acted from ignorance; his ignorance issued in his action; his ignorance serves to explain his action. He did not merely act while ignorant. Moreover, it seems that he could have avoided its being the case that, if he acted, he acted from ignorance, even if it were true (as I have not been supposing) that he could not have avoided being ignorant. For recall that the ignorance in question is his ignorance of doing wrong in the attempt to rescue Doris. Even if it were true that he could not have avoided being ignorant in this regard, he could have avoided acting from such ignorance simply by not making the attempt to rescue Doris (and he could have avoided making this attempt).

So the question remains: Why accept (2)? The answer, I think, is this. What distinguishes acting angrily from acting ignorantly does not have to do with the avoidability of acting in these ways. It has to do with the fact that, typically, one can act angrily while being aware that one ought not to perform the act in question, whereas one clearly cannot act from ignorance (or even merely while ignorant) of the fact that one ought not to perform the act in question while being aware that one ought not to perform it. Thus one can be culpable for acting angrily in a way in which one cannot be culpable for acting ignorantly. This stems, I believe, from the fact that lack of ignorance is a root requirement for responsibility. Given that it is such a requirement, (2) is true.²¹ But while I think that this does help explain why (2) is true,

20. Compare Aristotle bk. 3, chap. 1.

21. Indeed, the foregoing considerations imply that (2) would be true even if it were modified as follows: one is culpable for doing some act either from ignorance of the fact that one ought not to do it or merely while ignorant of the fact that one ought not to do it, only if one is culpable for being ignorant of this fact. But in fact there is some reason to think that this modification of (2) should be rejected. For if someone acts merely while ignorant of the wrongness of his (or her) action, this is an indication that he would have acted in the same way even if he had not been so ignorant. If such

clearly I cannot appeal to it when using (2) in an attempt to show that lack of ignorance is a root requirement for responsibility; for that would be to beg the question. Since I don't know how else one might try to justify (2), I shall not seek to establish it here but will rest content with the observation that even those who seem most strongly opposed to the idea that lack of ignorance is a root requirement for responsibility appear to accept it.²²

VIII

There has been much discussion recently of such moral vices as racism, sexism, and the like. I would think that it frequently (but by no means necessarily) happens that people who manifest these vices are oblivious to the wrongness involved in their doing so.²³ Insofar as this is so, the foregoing argument applies, and the result is that responsibility for these vices and the vicious behavior in which they issue is incurred less frequently, perhaps far less frequently, than is commonly supposed. This is an unwelcome conclusion to many. Several recent articles urge that we acknowledge that people are frequently to blame for engaging in such behavior, even though they engage in it in ignorance. They have taken pains to show how it is that, contrary to the assertions of many, such vices, and the consequent behavior, are often in the agent's control.²⁴ Some have emphasized, too, that the agent is often aware how to exercise this control.²⁵ Some have emphasized how it is that the agent can often control whether he or she remains ignorant of the wrongness of engaging in such vicious behavior.²⁶ But we can

ignorance plays no role in the explanation of his action, why excuse him? There may be something to this. It may be that such a person should be said to be culpable in some way, even if he is not culpable for his ignorance. If so, this would be an exception to the claim that lack of ignorance is a root requirement of responsibility. See the discussion of what I have called 'situational culpability' in *an Essay on Moral Responsibility*, pp. 135 ff. (What is said there itself needs elaboration.) Such culpability, if it exists, would also cast doubt on the claim that freedom is a root requirement of responsibility. It is not clear to me that we should accept the possibility of such culpability. Accepting it requires accepting not just that certain counterfactual statements about people's motives and behavior make sense and may be true but also that whether or not someone is actually culpable can be a function of such counterfactual considerations.

22. For example, Sverdlik, p. 141; Montmarquet, *Epistemic Virtue and Doxastic Responsibility*, p. 3, and "Culpable Ignorance and Excuses," pp. 44–45.

23. Compare the discussion in Fred E. Katz, *Ordinary People and Extraordinary Evil* (Albany: State University of New York Press, 1993).

24. For example, William Lyons, *Emotion* (Cambridge: Cambridge University Press, 1980), pp. 202–6; Carl Elliott, "Beliefs and Responsibility," *Journal of Value Inquiry* 25 (1991): 233–48, esp. p. 239; Montmarquet, *Epistemic Virtue and Doxastic Responsibility*, pp. 1 ff.

25. For example → Larry May, "Insensitivity and Moral Responsibility," *Journal of Value Inquiry* 26 (1992): 7–22, esp. pp. 19–20.

26. For example → Michele Moody-Adams, "Culture, Responsibility, and Affected Ignorance," *Ethics* 104 (1994): 291–309, esp. pp. 296 ff.

grant (indeed, I think we should grant) that all this is true, without granting that the agent is responsible either for the vices in question or for the consequent vicious behavior. For lack of ignorance concerning wrongdoing is a root requirement of responsibility. One can have control over one's vicious behavior, one can have control over one's vices, one can be aware that one has such control, and one can have control over whether one remains ignorant of the associated wrongness, without actually being aware of the associated wrongness. And, absent such awareness, one is not responsible.

Let me end by noting that even if in many cases people are not culpable for (e.g.) their racism—their racist views and their racist behavior—this of course does not mean that there is nothing to be criticized, morally, in such cases. Racism is a moral vice, regardless of whether one is morally responsible for it; having racist views is morally reprehensible, and acting on them is morally wrong. Ascriptions of responsibility constitute only one of several ways to engage in moral evaluation.²⁷

27. See my *An Essay on Moral Responsibility*, sec. 4.9, and "A Plea for Ambivalence" for further discussion of this point.